

Court No. - 3

Case :- WRIT - C No. - 34450 of 2021

Petitioner :- Lallan Pandey

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Avanish Kumar Srivastava

Counsel for Respondent :- C.S.C.

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Piyush Agrawal,J.

As prayed, **put up as a fresh case** before the appropriate Bench on **11.01.2022**.

Order Date :- 23.12.2021

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Court No. - 3

Case :- WRIT - C No. - 34450 of 2021

Petitioner :- Lallan Pandey

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Avanish Kumar Srivastava

Counsel for Respondent :- C.S.C.

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

None appears for the petitioner to press this petition even in the revised call.

List/put up in the additional cause list before the appropriate Bench **on 9.5.2022** among first ten cases of the list.

Order Date :- 26.4.2022

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Court No. - 21

Case :- WRIT - C No. - 34450 of 2021

Petitioner :- Lallan Pandey

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Avanish Kumar Srivastava

Counsel for Respondent :- C.S.C.

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Syed Qamar Hasan Rizvi,J.

As prayed on behalf of learned counsel for the petitioner, list on 15.03.2023.

Order Date :- 22.2.2023

Abhishek Gupta

(Syed Qamar Hasan Rizvi,J.) (Manoj Kumar Gupta,J.)

Court No. - 40

Case :- WRIT - C No. - 34450 of 2021

Petitioner :- Lallan Pandey

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Avanish Kumar Srivastava

Counsel for Respondent :- C.S.C.

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

1. Heard learned counsel for the petitioner and Ms. Uttara Bahuguna, learned Additional Chief Standing Counsel for the State-respondent.

2. By means of the present writ petition, petitioner is praying for quashing the impugned order dated 17.09.2021 passed by the respondent no.3-Executive Engineer, Vidyut Vitran Khand, Ist Purvanchal Vidyut Vitran Nigam Limited, Ghazipur.

3. Learned counsel for the petitioner states that against the impugned order dated 17.09.2021, the petitioner has got efficacious alternative remedy to approach Consumer Grievance Redressal Forum under Section 7.10 of Electricity Supply Code 2005.

4. Learned counsel for the petitioner submits that in similar circumstances, this Court has accorded indulgence in Writ C No. 13786 of 2023 (M/s KSS Electrodes Private Limited Vs. State of U.P. and 2 others) dated 9.5.2023, which is as under:

"1. Heard learned counsel for the petitioner; Ms. Uttara Bahuguna, learned Additional Chief Standing Counsel for the State-respondent no. 1 and Sri Ravi Anand Agarwal, learned counsel for the respondent no. 2 and 3.

2. By means of the present writ petition, petitioner is praying for quashing the demand notice dated 28.04.2022 (Annexure No. 7 to the writ petition) and impugned orders dated 04.02.2023 and 29.03.2023 passed by the second respondent (Annexure No. 10 and 11 to the writ petition) and impugned order dated 01.09.2012 passed by the third respondent (Annexure No. 2 to the writ petition).

3. Learned counsel for the respondent no. 2 and 3 raised a preliminary objection regarding maintainability of the writ petition on the ground that for redressal of his grievance, the petitioner has got efficacious alternative

remedy to approach Consumer Grievance Redressal Forum under Section 7.10 of Electricity Supply Code 2005 and as such the present writ petition is liable to be dismissed on the ground of statutory alternative remedy.

4. Once an objection is being raised, we have proceeded to examine the record and we are of the considered opinion once the efficacious alternative remedy is available to the petitioner, there is no reason or occasion to bypass the same and the writ petition is liable to be dismissed on the ground of statutory alternative remedy.

5. In the facts and circumstances, no useful purpose would be served in keeping the writ petition pending and with the consent of the parties, the writ petition is disposed of finally with the direction that in case any such application is being preferred by the petitioner under Code 2005 within 10 days from today, the competent authority would proceed to decide the same strictly in accordance with law on its own merit within further six weeks time ignoring the delay and laches in filing the same but certainly after affording opportunity to all stakeholders in the matter."

5. So far as the factual and legal aspect is concerned, the same cannot be disputed by learned Standing Counsel. Accordingly, the writ petition stands disposed of in terms of the aforesaid judgment/order quoted above.

6. However, in the facts and circumstances, we direct that in case any such application is being preferred by the petitioner under Code 2005 within 15 days from today, the competent authority would proceed to decide the same strictly in accordance with law on its own merit within further six weeks time ignoring the delay and laches in filing the same but certainly after affording opportunity to all stakeholders in the matter.

Order Date :- 13.7.2023

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